

23STCV02213 23STCV02213

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-08-19

Motion: PLAINTIFF'S MOTION TO ENFORCE SETTLEMENT

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Case Number: 23STCV02213 Hearing Date: August 19, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

MARK

DENIS QUINTERO,

Plaintiff,

vs.

LOS ANGELES COUNTY METROPOLITAN TRANSPORTATION AUTHORITY

and DOES 1 TO 100, INCLUSIVE,

Defendants.

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CASE

NO.: 23STCV02213

[TENTATIVE] ORDER RE: PLAINTIFF'S
MOTION TO ENFORCE SETTLEMENT

Dept. 733

8:30 a.m.

August 19, 2026

I.

INTRODUCTION

This case arises
out of a motor vehicle collision involving a Los Angeles County Metropolitan
Transportation Authority ("LACMTA") bus in which Plaintiff Mark Denis Quintero
("Plaintiff") was a passenger.

On February 1,
2023, Plaintiff filed a complaint against LACMTA alleging causes of action for
Motor Vehicle and Negligence.

On
May 13, 2026, Plaintiff filed the instant motion to enforce settlement pursuant
to Code of Civil Procedure section 664.6.

On

August 5, 2026, LACTMA filed an opposition.

On

August 12, 2026, Plaintiff filed a reply.

II.

LEGAL STANDARD

Enforcement of settlement agreements is governed by Code of Civil Procedure section 664.6. This statute provides, in relevant part:

If the parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.¿

(Code

Civ. Proc. § 664.6(a).)

Strict compliance with the statutory requirements is necessary before a court can enforce a settlement agreement under this statute. (Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc. (2002) 103 Cal.App.4th 30, 37.) Thus, to enforce a written settlement agreement under section 664.6, the following three elements must be met: (1) the parties must have come to a meeting of the minds on all material points; (2) there must be a writing that contains the material terms of the agreement; and (3) the writing must be signed by the parties. (Weddington Productions, Inc. v. Flick (1998) 60 Cal.App.4th 793, 797-98.)¿

The Court is empowered under this section to resolve reasonable disputes over the terms of a settlement. (Machado v. Myers (2019) 39 Cal.App.5th 779, 795.) “A trial court, when ruling on a section 664.6 motion, acts as a trier of fact. Section 664.6’s ‘express authorization for trial courts to determine whether a settlement has occurred is an implicit authorization for the trial court to interpret the terms and conditions to settlement.” (Skulnick v. Roberts Express, Inc. (1992) 2 Cal.App.4th 884, 889 (citations

omitted).) The Court does not insert provisions into the parties' agreement, but applies the rules of contractual interpretation to interpretation of the settlement. (Id. at p. 792.) When extrinsic evidence is necessary, the Court may decide the motion on declarations alone. (Richardson v. Richardson (1986) 180 Cal.App.3d 91, 97.)

III.

DISCUSSION

Plaintiff moves for the Court to enforce a purported settlement agreement between the

parties that was reached during a Mandatory Settlement Conference (MSC) on October 21, 2025 before Settlement Officers Mark R. Weiner, Esq. and John Vukmanovic, Esq. (McGlynn Decl., ¶ 3.)

Plaintiff

provides that following the MSC, Settlement Officer Mark R. Weiner, Esq. memorialized and confirmed the Settlement Agreement reached by the parties at the MSC via email to counsel for the parties. The material terms included were: a) The settlement amount; b) Plaintiff to be notified by November 6, 2025 of Board's acceptance pursuant to Defense Counsel's recommendation; c) Defendant's transmittal of closing documents; d) Payment of settlement funds upon receipt of executed closing documents; e) Based upon Defendants' representations, Plaintiff was to file Notice of Conditional Settlement in advance of the Final Status Conference that was set for November 4, 2025. (Id. ¶ 4, Ex. 1.)

Specifically, Mr. Weiner in his email stated that the email was to be confirmation of a "Mediator's Proposal." (Id., Ex. 1 at p. 6.) Mr. Weiner explicitly stated that counsel for LACTMA and LACTMA's representative at the MSC were to recommend acceptance to the LACTMA Board. Only upon the Board's acceptance will LACTMA "forward closing documents to plaintiff and upon receipt of the executed documents shall issue payment forthwith." (Ibid.)

This is not a settlement agreement that the Court can enforce, as no contract has been formed. (Weddington Prods., Inc. v. Flick (1998) 60 Cal. App. 4th 793, 810 ["A settlement agreement is a contract, and the legal principles which apply to contracts generally apply to settlement contracts."].) Mr.

Weiner's email expressly stated that "this shall confirm our Mediator's Proposal." (McGlynn Decl., Ex. 1.) LACTMA then had "until November 6 to notify plaintiff and the settlement officers of the Board's acceptance of the Mediator's Proposal." (Ibid.) LACTMA's Board did not accept the Proposal. (Allen Decl., ¶¶ 3, 6.) Simply, there is no contract. (Burch v. Premier Homes, LLC (2011) 199 Cal.App.4th 730, 746 ["mutual assent exists when a reasonable person would conclude from the outward conduct of the parties that there was mutual agreement regarding their intent to be bound."].)

Also, strict compliance with the statutory requirements of section 664.6 is necessary before a court can enforce a settlement agreement under the statute. (Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc. (2002) 103 Cal.App.4th 30, 37.) And as stated above, to enforce a written settlement agreement under section 664.6, the following three elements must be met: (1) the parties must have come to a meeting of the minds on all material points; (2) there must be a writing that contains the material terms of the agreement; and (3) the writing must be signed by the parties. (Weddington Productions, Inc. v. Flick (1998) 60 Cal.App.4th 793, 797-798.)² The record is clear that (1) there has been no meeting of the minds regarding the Agreement by the fact that LACTMA did not accept the Mediator's Proposal offered by the Settlement Officers and (2) there is no writing signed by the parties themselves. (Sully-Miller Contracting Co. v. Gledson/Cashman Constr., Inc. (2002) 103 Cal.App.4th 30, 37 ["A written settlement agreement is not enforceable under section 664.6 unless it is signed by all of the parties to the agreement, not merely the parties against whom the agreement is sought to be enforced."]; see also Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 299, 305 [the statute "require[s] the signatures of the parties seeking to enforce the agreement under [Code of Civil Procedure] section 664.6 and against whom the agreement is sought to be enforced"].)

"While, on the surface, this result may seem to exalt form over substance, the statute is clear and '[b]ecause of its summary nature, strict compliance with the requirements of section 664.6 is [a] prerequisite to invoking the power of the court to impose a settlement agreement." (Critz v. Enos (2010) 187 Cal.App.4th 1242, 1262.)

IV.

CONCLUSION

Plaintiff's motion
to enforce the Settlement Agreement is DENIED.

Dated this 19th
day of August 2026

Hon. Gary
D. Roberts

Judge
of the Superior Court